

CV-25-004162 BECK, ERIC vs ALDERWOODS GROUP CALIFORNIA INC - Defendant Rudy Gutierrez's Motion for Summary Judgment, or in the Alternative Summary Adjudication - Summary Judgment GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: The Court finds that Defendant, as the moving party, met the initial burden of establishing prima facie entitlement to judgment based on the submitted evidence. The burden then shifts to Plaintiff to produce admissible evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc. §437c(p)(2).) The Court finds that Plaintiff has failed to meet his burden in that regard. Specifically, in the context of the parties' agreement that the claim against Defendant Gutierrez herein turns on one isolated interaction, and taking Plaintiff's version of that interaction at face value, the Court finds that the evidence fails to demonstrate Plaintiff's ability to maintain an actionable claim for race/national origin harassment under California law. Defendant's objection to Exhibit 4 to Ms. Begakis' declaration is SUSTAINED on the grounds asserted. The Court will sign the proposed order on Defendant's evidentiary objections. Defendant shall serve and submit a revised form of proposed order consistent with the Court's ruling herein. (Cal. Rules of Court, rule 3.1312.)

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: c28f332b0ffaf02cfdac3b39a8a14da332a04c99bab0d2a050b519ac86b9f4b

CV-25-004162 - BECK, ERIC vs ALDERWOODS GROUP CALIFORNIA INC - Defendant Rudy Gutierrez's Motion for Summary Judgment, or in the Alternative Summary Adjudication - Summary Judgment GRANTED.

The Court finds that Defendant, as the moving party, met the initial burden of establishing prima facie entitlement to judgment based on the submitted evidence. The burden then shifts to Plaintiff to produce admissible evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc. §437c(p)(2).) The Court finds that Plaintiff has failed to meet his burden in that regard. Specifically, in the context of the parties' agreement that the claim against Defendant Gutierrez herein turns on one isolated interaction, and taking Plaintiff's version of that interaction at face value, the Court finds that the evidence fails to demonstrate Plaintiff's ability to maintain an actionable claim for race/national origin harassment under California law.

Defendant's objection to Exhibit 4 to Ms. Begakis' declaration is SUSTAINED on the grounds asserted. The Court will sign the proposed order on Defendant's evidentiary objections.

Defendant shall serve and submit a revised form of proposed order consistent with the Court's ruling herein. (Cal. Rules of Court, rule 3.1312.)